

Court No. - 32

Case :- WRIT - C No. - 45458 of 2008

Petitioner :- Smt. Pushpa Jain

Respondent :- Executive Engineer Paschimanchal Vidyut Vitran Nigam & Other

Petitioner Counsel :- Ranjit Saxena, Brij Lal Verma

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

Passed over on the illness slip of Sri H.P. Dube.

Order Date :- 19.2.2010

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Hon'ble R.K. Agrawal, J.

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Order Date :- 2.4.2010

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Hon'ble Abhinava Upadhya, J.

The petitioner had applied for new electric connection for the premises in question.

Sri H.P.Dube, learned counsel appearing for the respondents submitted that earlier the petitioner was running Hotel business along with other persons, who had been granted electric connection and has defaulted in making the payment of electricity dues. Huge outstanding amount is there. Now the petitioner wants the electric connection in her name in respect of the same premises. In view of the amendment made in the Electricity Supply Code, the liability for payment of dues in respect of the earlier electric connection is on the petitioner, if new connection is taken.

That being the position, we are of the considered opinion that until and unless the petitioner clears the dues which is outstanding in respect of the electric connection given in the premises in question, the new connection cannot be released.

The writ petition stands disposed of.

Order Date :- 9.4.2010

SKM